

TENTATIVE RULING

Case: **Lodewyk Enterprises, L.P. v. Trig Builders, Inc.**
Case No. CV2025-1132

Hearing Date: **June 25, 2026** **Department Fourteen** **9:00 a.m.**

Defendants Trig Builders, Inc. and Yossi Malul’s motion to vacate a default is **DENIED**. (Code Civ. Proc., § 473, subds. (b) & (d).) As to defendants’ request for relief under section 473(b), defendants did not file this motion within six months after the default judgment was taken, and the motion was not “accompanied by a copy of the answer or other pleading proposed to be filed therein.” (Code Civ. Proc., § 473, subd. (b).) As to defendants’ request for relief under section 473(d), defendants have failed to demonstrate that they were not properly served with the summons and complaint. (Code Civ. Proc., §§ 473, subd. (d), 415.20, subd. (b); see also Evid. Code, § 647; Malul decl., ¶¶ 1-6.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: Rosales v. Mariani Nut Company
Case No. CV2025-2290

Hearing Date: June 25, 2026 **Department Fourteen** **9:00 a.m.**

Defendant Mariani Nut Company's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Defendant's motion to compel arbitration and stay case is **GRANTED**. (9 U.S.C. § 1, et seq.; Code Civ. Proc., § 1281 et seq.; Stenson Decl.) "A party seeking to compel arbitration of a dispute bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability." (*Jenks v. DLA Piper Rudnick Gray Cary US LLP* (2015) 243 Cal.App.4th 1, 8; see also *Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 357; *Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 380-381.) The Court finds that defendant has established the existence of an arbitration agreement between defendant and plaintiff Andres Rosales. (9 U.S.C. § 4; Code Civ. Proc., § 1281.2; *Jenks, supra*, 243 Cal.App.4th at p. 8; Stenson Decl., ¶¶ 5-13, Exhs. 1-6.) The Court further finds that plaintiff has failed to demonstrate that the arbitration agreement is unconscionable. (Rosales Decl., ¶¶ 4-12; *Kinney v. United HealthCare Services, Inc.* (1999) 70 Cal.App.4th 1322, 1329 [both procedural and substantive unconscionability "must be present before a contract or contract provision is rendered unenforceable on grounds of unconscionability"]; *Carboni v. Arrospide* (1991) 2 Cal.App.4th 76, 83 ["there is a sliding scale relationship between the two concepts: the greater the degree of substantive unconscionability, the less the degree of procedural unconscionability that is required to annul the contract or clause"]; see also *Barrera v. Apple American Group LLC* (2023) 95 Cal.App.5th 63, 87 [same].)

This matter is stayed pending the completion of arbitration. (9 U.S.C. § 3; Code Civ. Proc., § 1281.4.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.